

25NWLC23115 25NWLC23115

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25NWLC23115 Hearing Date: July 22, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Creditors Adjustment

Bureau, Inc.'s Motion to Enforce Settlement is continued to August 27, 2026. By no later than July 29, 2026 Plaintiff is to file and serve a supplemental declaration addressing (1) the basis for the costs claimed in the sum \$717.84, and (2) the calculation of the claimed interest in the sum of \$2,347.68.

Analysis:

On May 6, 2025, Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") filed this subrogation action against Defendant Paul Hutcherson aka Paul Henry Hutcherson dba Hutcherson Construction ("Defendant"). On February 5, 2026, Plaintiff filed a Mutual General Release and Settlement Agreement and the instant Motion to Set Aside Dismissal and Enter Judgment.

The Motion was served on the same day via first-class mail and electronic mail to Defendant. To date, no opposition has been filed.

Discussion

The instant Motion is brought under Code of Civil Procedure, section 664.6, which states in relevant part:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof,

the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) “Parties” include “[a]n attorney who represents the party” and an insurer’s agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory requirements set forth above because it was signed by both parties. (Motion, Aposhian Decl., Exh. 1, p. 3.)

The settlement provides that

Defendant would pay Plaintiff \$9,262.13 in three installment payments due on July 14, 2025, August 14, 2025, and September 14, 2025. (Id. at Exh. 1, ¶1.) The settlement agreement also provides that in the event of Defendant’s default, Plaintiff may seek judgment in the full amount of liability (\$20,550.63), plus interest, costs, and attorney’s fees as claimed in the Complaint. (Id. at Exh. 1, ¶2.) A total of \$6,174.76 was paid towards the settlement, after which Defendant defaulted. (Id. at ¶3.) Plaintiff seeks the principal amount plus interest in the sum of \$2,347.68 and costs in the sum of \$717.84, less payments in the sum of \$6,174.76, for a total of \$17,441.39. (Id. at ¶¶4-6.) The declarations do not speak to the calculation of the costs claimed, nor do they address the calculation of interest. (See Motion, Aposhian, Richardson Decls.) It appears from the Complaint that interest accrues on the amounts owed prior to treble damages, which would result in a lower amount than the amount claimed. (See Compl., p. 6, ¶¶1-3.) In any event, the Court will not award interest or costs without a declaration to substantiate the amounts.

In addition, Plaintiff is entitled

to its attorney’s fees and costs incurred to enforce the Settlement Agreement. (Id., at Exh. 1, ¶10.) The supporting declaration attests to attorney’s fees in the amount of \$1,750.00 and costs of \$443.82, for a total amount of \$2,193.82. (Motion, Aposhian Decl., ¶¶4-6.)

Conclusion

Plaintiff Creditors Adjustment

Bureau, Inc.'s Motion to Enforce Settlement is continued to August 27, 2026. By no later than July 29, 2026 Plaintiff is to file and serve a supplemental declaration addressing (1) the basis for the costs claimed in the sum \$717.84, and (2) the calculation of the claimed interest in the sum of \$2,347.68.

Moving party to give notice.